

COMMITTEE ON NATURAL RESOURCES, ENERGY & WATER
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1445
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 49-241, Arizona Revised Statutes, is amended to
3 read:

4 49-241. Permit required to discharge

5 A. Unless otherwise provided by this article, any person who
6 discharges or who owns or operates a facility that discharges shall obtain
7 an aquifer protection permit from the director.

8 B. Unless exempted under section 49-250, or unless the director
9 determines that the facility will be designed, constructed and operated so
10 that there will be no migration of pollutants directly to the aquifer or
11 to the vadose zone, the following are considered to be discharging
12 facilities and shall be operated pursuant to either an individual permit
13 or a general permit, including agricultural general permits, under this
14 article:

15 1. Surface impoundments, including holding, storage settling,
16 treatment or disposal pits, ponds and lagoons.

17 2. Solid waste disposal facilities except for mining overburden and
18 wall rock that has not been and will not be subject to mine leaching
19 operations.

20 3. Injection wells.

21 4. Land treatment facilities.

22 5. Facilities that add a pollutant to a salt dome formation, salt
23 bed formation, dry well or underground cave or mine.

24 6. Mine tailings piles and ponds.

25 7. Mine leaching operations.

26 8. Underground water storage facilities.

27 9. Sewage treatment facilities, including on-site wastewater
28 treatment facilities.

29 10. Wetlands designed and constructed to treat municipal and
30 domestic wastewater for underground storage.

1 C. The director shall provide public notice and an opportunity for
2 public comment on any request for a determination from the director under
3 subsection B of this section that there will be no migration of pollutants
4 from a facility. A public hearing may be held at the discretion of the
5 director if sufficient public comment warrants a hearing. The director
6 may inspect and may require reasonable conditions and appropriate
7 monitoring and reporting requirements for a facility managing pollutants
8 that are determined not to migrate under subsection B of this section.
9 The director may identify types of facilities, available technologies and
10 technical criteria for facilities that will qualify for a determination.
11 The director's determination may be revoked on evidence that pollutants
12 have migrated from the facility. The director may impose a review fee for
13 a determination under subsection B of this section. Any issuance, denial
14 or revocation of a determination may be appealed pursuant to section
15 49-323.

16 D. The director shall annually make the fee schedule for aquifer
17 protection permit applications available to the public on request and on
18 the department's website, and a list of the names and locations of the
19 facilities that have filed applications for aquifer protection permits,
20 with a description of the status of each application, is available to the
21 public on request.

22 E. The director shall prescribe the procedures for aquifer
23 protection permit applications and fee collection under this section. The
24 director shall deposit, pursuant to sections 35-146 and 35-147, all monies
25 collected under this section in the water quality fee fund established by
26 section 49-210 and may authorize expenditures from the fund, subject to
27 legislative appropriation, to pay reasonable and necessary costs of
28 processing and issuing permits and administering the registration program.

29 F. FOR AQUIFER PROTECTION PERMITS ISSUED TO A CITY OR A TOWN [WITH
30 ~~A POPULATION OF ONE THOUSAND PERSONS OR MORE BUT LESS THAN TEN THOUSAND~~
31 ~~PERSONS, THE DIRECTOR MAY REQUIRE BACTERIOLOGICAL SAMPLING NOT MORE~~
32 ~~FREQUENTLY THAN FOUR TIMES PER MONTH. A CITY OR TOWN] WITH A POPULATION~~
33 ~~OF ONE THOUSAND PERSONS OR MORE BUT LESS THAN TEN THOUSAND PERSONS[, THE~~
34 ~~CITY OR TOWN] MAY TEST BACTERIOLOGICAL SAMPLES ON-SITE WITH TESTING~~
35 ~~EQUIPMENT THAT IS APPROVED BY THE UNITED STATES ENVIRONMENTAL PROTECTION~~
36 ~~AGENCY.~~

37 Sec. 2. Section 49-255.01, Arizona Revised Statutes, is amended to
38 read:

39 49-255.01. Arizona pollutant discharge elimination system
40 program; rules and standards; affirmative
41 defense; fees; general permit

42 A. A person shall not discharge except under either of the
43 following conditions:

44 1. In conformance with a permit that is issued or authorized under
45 this article or rules authorized under section 49-203, subsection A,
46 paragraph 2.

1 2. Pursuant to a permit that is issued or authorized by the United
2 States environmental protection agency until a permit that is issued or
3 authorized under this article takes effect.

4 B. The director shall adopt rules to establish an AZPDES permit
5 program for discharges to WOTUS consistent with the requirements of
6 sections 402(b) and 402(p) of the clean water act. This program shall
7 include requirements to ensure compliance with section 307 and
8 requirements for the control of discharges consistent with sections 318
9 and 405(a) of the clean water act. The director shall not adopt any
10 requirement for WOTUS that is more stringent than any requirement of the
11 clean water act. The director shall not adopt any requirement that
12 conflicts with any requirement of the clean water act. The director may
13 adopt federal rules pursuant to section 41-1028 or may adopt rules to
14 reflect local environmental conditions to the extent that the rules are
15 consistent with and not more stringent than the clean water act and this
16 article.

17 C. The rules adopted by the director under subsection B of this
18 section shall provide for:

19 1. Issuing, authorizing, denying, modifying, suspending or revoking
20 individual or general permits.

21 2. Establishing permit conditions, discharge limitations and
22 standards of performance as prescribed by section 49-203, subsection A,
23 paragraph 8, including case-by-case effluent limitations that are
24 developed in a manner consistent with 40 Code of Federal Regulations
25 section 125.3(c).

26 3. Modifications and variances as allowed by the clean water act.

27 4. Other provisions necessary for maintaining state program
28 authority under section 402(b) of the clean water act.

29 5. FOR A CITY OR TOWN WITH A POPULATION OF ONE THOUSAND PERSONS OR
30 MORE BUT LESS THAN TEN THOUSAND PERSONS, USING ON-SITE TESTING EQUIPMENT
31 THAT IS APPROVED BY THE UNITED STATES ENVIRONMENTAL PROTECTION AGENCY TO
32 DETECT BACTERIOLOGICAL MATERIAL.

33 D. This article does not affect the validity of any existing rules
34 that are adopted by the director and that are equivalent to and consistent
35 with the national pollutant discharge elimination system program
36 authorized under section 402 of the clean water act until new rules for
37 AZPDES discharges are adopted pursuant to this article.

38 E. An upset constitutes an affirmative defense to any
39 administrative, civil or criminal enforcement action brought for
40 noncompliance with technology-based permit discharge limitations if the
41 permittee complies with all of the following:

42 1. The permittee demonstrates through properly signed
43 contemporaneous operating logs or other relevant evidence that:

44 (a) An upset occurred and that the permittee can identify the
45 specific cause of the upset.

46 (b) The permitted facility was being properly operated at the time
47 of the upset.

1 (c) If the upset causes the discharge to exceed any discharge
2 limitation in the permit, the permittee submitted notice to the department
3 within twenty-four hours after the upset.

4 (d) The permittee has taken appropriate remedial measures including
5 all reasonable steps to minimize or prevent any discharge or sewage sludge
6 use or disposal that is in violation of the permit and that has a
7 reasonable likelihood of adversely affecting human health or the
8 environment.

9 2. In any administrative, civil or criminal enforcement action, the
10 permittee shall prove, by a preponderance of the evidence, the occurrence
11 of an upset condition.

12 F. Compliance with a permit issued pursuant to this article shall
13 be deemed compliance with both of the following:

14 1. All requirements in this article or rules adopted pursuant to
15 this article relating to state implementation of sections 301, 302, 306
16 and 307 of the clean water act, except for any standard that is imposed
17 under section 307 of the clean water act for a toxic pollutant that is
18 injurious to human health.

19 2. Limitations for pollutants in WOTUS adopted pursuant to sections
20 49-221 and 49-222, if the discharge of the pollutant is specifically
21 limited in a permit issued pursuant to this article or the pollutant was
22 specifically identified as present or potentially present in facility
23 discharges during the application process for the permit.

24 G. Notwithstanding section 49-203, subsection D, permits that are
25 issued under this article shall not be combined with permits issued under
26 article 3 of this chapter.

27 H. The decision of the director to issue or modify a permit takes
28 effect on issuance if there were no changes requested in comments that
29 were submitted on the draft permit unless a later effective date is
30 specified in the decision. In all other cases, the decision of the
31 director to issue, deny, modify, suspend or revoke a permit takes effect
32 thirty days after the decision is served on the permit applicant, unless
33 either of the following applies:

34 1. Within the thirty-day period, an appeal is filed with the water
35 quality appeals board pursuant to section 49-323.

36 2. A later effective date is specified in the decision.

37 I. In addition to other reservations of rights provided by this
38 chapter, this article does not impair or affect rights or the exercise of
39 rights to water claimed, recognized, permitted, certificated, adjudicated
40 or decreed pursuant to state or other law.

41 J. The director shall establish by rule fees, including maximum
42 fees, to pay expenses incurred in implementing the AZPDES PERMIT
43 program. Monies collected pursuant to this section shall be deposited,
44 pursuant to sections 35-146 and 35-147, in the water quality fee fund
45 established by section 49-210.

46 K. Any permit conditions concerning threatened or endangered
47 species shall be limited to those required by the endangered species act.

1 L. When developing a general permit for discharges of storm water
2 from construction activity, the director shall provide for reduced control
3 measures at sites that retain storm water in a manner that eliminates
4 discharges from the site, except for the occurrence of an extreme event.
5 Reduced control measures shall be available if all of the following
6 conditions are met:

7 1. The nearest downstream receiving water is ephemeral and the
8 construction site is a sufficient distance from a water warranting
9 additional protection as described in the general permit.

10 2. The construction activity occurs on a site designed so that all
11 storm water generated by disturbed areas of the site exclusive of public
12 rights-of-way is directed to one or more retention basins that are
13 designed to retain the runoff from an extreme event. For the purposes of
14 this subsection, "extreme event" means a rainfall event that meets or
15 exceeds the local one hundred-year, two-hour storm event as calculated by
16 an Arizona registered professional engineer using industry practices.

17 3. The owner or operator complies with good housekeeping measures
18 included in the general permit.

19 4. The owner or operator maintains the capacity of the retention
20 basins.

21 5. Construction conforms to the standards prescribed by this
22 section.

23 M. If the director commences proceedings for the renewal of a
24 general permit issued pursuant to this article, the existing general
25 permit shall not expire and coverage may continue to be obtained by new
26 dischargers until the proceedings have resulted in a final determination
27 by the director. If the proceedings result in a decision not to renew the
28 general permit, the existing general permit shall continue in effect until
29 the last day for filing for review of the decision of the director not to
30 renew the permit or until any later date that is fixed by court order.

31 Enroll and engross to conform

32 Amend title to conform

And, as so amended, it do pass

GAIL GRIFFIN
CHAIRMAN

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